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Case Number: 25SMCV06782 Hearing Date: July 8, 2026 Dept: P

Tentative

Ruling

Mahshid

Salmassian v. The Desmond Condominium Homeowners' Association, Case No.

25SMCV06782

Defendant's

Motion for Judgment on the Pleadings

Hearing

Date: July 8, 2026

Background

Plaintiff

Mahshid Salmassian brings this action against Defendant The Desmond Condominium Homeowners' Association ("the HOA") for (1) breach of contract; (2) breach of equitable servitudes; (3) negligence; (4) nuisance; (5) breach of fiduciary duty; (6) intentional infliction of emotional distress ("IIED"); failure to permit inspection of records; (7) elder abuse; (8) negligent infliction of emotional distress ("NIED"); and (9) declaratory relief. Salmassian alleges that she is a member of the HOA and owns property located at 851 N. San Vicente Blvd, Unit 101, West Hollywood, CA. (Complaint, ¶ 12.) Salmassian alleges that she purchased the property on April 22, 2022, and moved in on December 23, 2022. (Id. at ¶¶ 19, 21.) Salmassian alleges that between December 31, 2022 and the date of filing the complaint, there have been three significant water intrusion events, in December/January

2022, March 2023, and February 2025, and that the HOA failed to comply with its obligations under the CC&Rs and failed to properly remediate the water intrusion, causing damage to her property. (Complaint, ¶¶ 37, 40.)

On

December 31, 2025, Salmassian filed the complaint.

On March

11, 2026, Salmassian entered default against the HOA.

On April

16, 2026, the parties stipulated to set aside default.

On April

17, 2026, the HOA answered the complaint.

On May 7,

2026, Salmassian filed a demurrer to the HOA's answer. Salmassian's demurrer is set for hearing on September 1, 2026.

On May 28,

2026, the HOA filed this Motion for Judgment on the Pleadings as to Salmassian's claims for nuisance, IIED, elder abuse, and NIED. On June 24, 2026, Salmassian filed opposition. On June 30, 2026, the HOA filed a reply.

Arguments

The HOA

moves for judgment on the pleadings on Salmassian's nuisance, IIED, elder abuse, and NIED claims. The HOA argues that Salmassian's nuisance claim is a "tortified" breach of contract claim. (Motion for Judgment on the Pleadings ("MJOP"), pp. 3-4.) The HOA argues that Salmassian's IIED claim fails because she does not allege acts "so extreme as to exceed all bounds that are usually tolerated in a civilized society." (Id. at p. 5.) The HOA argues that Salmassian's elder abuse claim fails because she does not identify a relationship that would allow her to state a claim for elder abuse. (Id. at p. 7.) The HOA contends that Salmassian's elder abuse claim also fails because the complaint does not plead facts showing recklessness, oppression, fraud, or malice. (Id. at p. 9.) The HOA argues that Salmassian's claim for NIED is not a recognized cause of action against the HOA because the HOA does not owe

Salmassian a duty. (Id. at pp. 10-11.) Finally, the HOA argues that Salmassian's claim for punitive damages fails because the complaint does not allege a tort action and oppression, fraud, or malice. (Id. at p. 12.)

In

opposition, Salmassian argues that the complaint states a claim for nuisance against the HOA under *Cutujian v. Benedict Hills Estates Assn.* (1996) 41 Cal.App.4th 1379. (Opposition, p. 4.) Salmassian argues that the complaint alleges the HOA's intent to cause extreme and outrageous conduct. (Id. at p. 6.) Salmassian argues that the fact that the HOA does not have a custodial relationship with her does not impact Salmassian's financial elder abuse claim, which does not require any such relationship. (Id. at p. 8.) Salmassian argues that her NIED claim is not a stand-alone NIED claim, but rather a claim for the recovery of emotional distress damages under an ordinary negligence theory. (Id. at p. 9.) Salmassian argues that this claim is based on the duties the HOA owe her as a resident. (Ibid.) Finally, Salmassian argues that the complaint supports her claim for punitive damages. (Id. at p. 10-11.) If the Court grants any part of the HOA's motion, Salmassian requests leave to amend. (Id. at p. 11.)

In reply,

the HOA argues that Salmassian has not plead substantial and unreasonable interference with the use and enjoyment of her property sufficiently to claim private nuisance. The HOA argues that Salmassian's nuisance claim improperly attempts to convert an alleged breach of the CC&Rs into a tort. (Reply, p. 3.) The HOA argues that the complaint fails to allege extreme and outrageous conduct sufficient to support an IIED claim. (Id. at p. 4.) The HOA argues that the complaint does not state a claim for financial elder abuse because it does not allege facts showing that Defendant took or retained Plaintiff's personal property for a wrongful use or with intent to defraud. (Id. at p. 5.) The HOA argues that Plaintiff's NIED claim is duplicative of her negligence claim. (Id. at p. 6.) Finally, the HOA argues that Salmassian's complaint does not support a claim for punitive damages. (ID. at p. 7.)

Motion

for Judgment on the Pleadings

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. The motion may be granted if it appears that a party is

entitled to judgment as a matter of law based on the pleadings and matters that may be judicially noticed (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322, citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (*Id.*) The motion may not be supported by extrinsic evidence. (*Barker v. Hull* (1987) 191 Cal.App.3d 221, 236.)

When the moving party is a defendant, he must demonstrate either of the following exist: (1) the court has no jurisdiction on the subject of the cause of action alleged in the complaint; or (2) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(a)(B)(i)-(ii).)

Additionally, a motion for judgment on the pleadings must be accompanied by a meet and confer declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed. (Code Civ. Proc., § 439.) A statutory motion for judgment on the pleadings must be filed thirty days before trial. (*Ibid.*) Common law motions for judgment on the pleadings are not bound by the deadline or the meet and confer requirement and may be made at any time. (*Sofias v. Bank of America* (1985) 172 Cal.3d 583, 585-586 (timing); Code Civ. Proc. § 439(a) (meet and confer requirement for statutory motions).) There is no fundamental difference between a common law and statutory motion for judgment on the pleadings. (*Cordova v. 21st Century Ins. Co.* (2005) 125 Cal.4th 89, 109.)

Analysis

Procedure

On May 12, 2026, the HOA met and conferred with counsel for Mrs. Salmassian before filing this motion. (*Saakyan Decl.*, ¶ 2.) The meet and confer requirement is satisfied.

Merits

a.

Private

Nuisance

A

complaint states a cause of action for private nuisance when it states facts showing (1) interference with plaintiff's use and enjoyment of plaintiff's property; (2) invasion of plaintiff's use and enjoyment involves substantial actual damage; and (3) interference is unreasonable as to the nature, duration, or amount. ((San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938; Civ. Code § 3479.)

"It is

settled that where conduct which violates a duty owed to another also interferes with that party's free use and enjoyment of his property, nuisance liability arises." (Cutujian v. Benedict Hills Estates Assn. (1996) 41

Cal.App.4th 1379, 1389.) A duty under HOA CC&Rs can give rise to a claim for private nuisance. (Ibid. ["the Association's violation of its duty to Cutujian under the CC&R's gave rise to liability for the nuisance caused by the slump, which plainly interfered with Cutujian's use of the land."].)

However, if the allegations giving rise to a claim for private nuisance are identical to a claim for breach of the CC&Rs, the nuisance claim may be redundant. (Ibid.)

Here,

Salmassian's claim that the HOA's negligence over a long period of time caused repeated water intrusion events on her property that impacted her use and enjoyment of her property is sufficient to claim an unreasonable and substantial interference with her use and enjoyment of her property. (See Complaint, ¶ 75, referencing ¶¶ 23-48.)

However,

Salmassian's nuisance claim is duplicative of her breach of contract claim.

Salmassian's breach of contract claim seeks damages for the HOA's alleged failure to investigate, maintain, repair, or replace defective common area components and the HOA's alleged failure to protect Salmassian's property from water intrusion, moisture, structural damage, and health and safety risks.

(Complaint, ¶¶ 55-56.) Her nuisance claim is based on the HOA's alleged failure

to remedy recurring water intrusion, structural deterioration, and mold; interference by the HOA's vendors and repair workers; and the HOA's failure to timely abate the nuisance, prevent further intrusion, and repair common area components. (Complaint, ¶¶ 76, 77.) The allegations in the complaint are virtually identical. Salmassian also does not make any arguments that would distinguish her nuisance claim from her breach of contract claim in her opposition to this motion. Salmassian's nuisance claim is redundant.

b.

Intentional

Infliction of Emotional Distress

To

state a claim for intentional infliction of emotional distress, a complaint must plead facts showing that the defendant committed some extreme and outrageous act intentionally or with reckless disregard of the possibility of causing the plaintiff distress and actually and proximately caused plaintiff's severe emotional distress. (Grenier v. Taylor (2015) 234 Cal.App.4th 471, 486.)

Salmassian

cites no authority finding a landlord's general failure to remediate water intrusion to be extreme and outrageous conduct sufficient to support a claim for IIED. Salmassian also does not describe any specific intentional conduct that would exceed ordinary negligence. Extreme and outrageous conduct must be conduct that is so egregious that it is "utterly intolerable in a civilized community." (Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1266.)

Salmassian's

claims sound more in negligence or breach of contract than in IIED.

c.

Elder

Abuse

In her

opposition papers, Salmassian contends that the complaint states a claim for financial elder abuse and concedes that it does not allege the custodial relationship required to state a claim for neglect. (Opposition, p.8.) Unlike other claims under WIC § 15610, a financial elder abuse claim does not require

a custodial relationship. (Winn v. Pioneer Medical Group (2016), 63 Cal.4th 148, 162; cf. Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 849 [finding liability where insurance agents pressured plaintiffs into purchasing additional policies].)

A

complaint states a claim for financial elder abuse occurs when it alleges that the defendant did any of the following:

1.

Takes,

secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

2.

Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

3.

Takes,

secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in section 15610.70.

(WIC § 15610.30, emphasis added.)

Salmassian

alleges that the HOA wrongfully retained her money by denying reimbursement for electrical costs required to run dehumidifiers, refused to compensate her for interior damages, shifted financial responsibility onto her, and compelled her to incur out-of-pocket repairs. (Complaint, ¶ 107.) Salmassian alleges, on information and belief, that the HOA acted “with recklessness, oppression, fraud, or malice . . . by disregarding Mrs. Salmassian’s vulnerability, ignoring repeated notifications of dangerous conditions, and refusing to take reasonable steps to prevent further physical and emotional harm.” (Complaint, ¶ 115.) Salmassian’s specific allegations that the HOA ignored her reports and refused to take affirmative action do not substantiate her conclusory claim that the HOA acted with fraudulent intent. Salmassian also does not allege facts showing that the HOA retained her property for a wrongful use. The

complaint fails to state a claim for financial elder abuse.

d.

Negligent

Infliction of Emotional Distress

There is

no independent tort of negligent infliction of emotional distress. (Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1266, fn. 11.)

However, a complaint may state a claim for damages for serious emotional distress attributable to defendants' negligence under certain circumstances, particularly if the plaintiff is a bystander and witnesses severe injury to a relative. (Kuciemba v. Victory Woodworks, Inc. (2023) 14 Cal.5th 993, 1007–1008 [bystanders' recovery for negligent infliction of emotional distress permitted if the plaintiff (1) is closely related to the victim, (2) is present at the injury-producing event when it occurs and then aware it is causing the victim's injury, and (3) has suffered serious emotional distress as a result]; Downey v. City of Riverside (2024) 16 Cal. 5th 539, 551 [no requirement of bystanders' contemporaneous awareness of the defendant's causing injury as distinguished from awareness of the injury-causing event]; Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 985 [for a duty to exist, generally defendants must have threatened physical injury and not damage to property interests]; Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1376 [evidence of losing sleep, upset stomach and anxiety did not constitute severe emotional distress of such lasting and enduring quality that no reasonable person should be expected to endure].)

Salmassian

does not allege emotional distress as a result of bystander liability. Her claim for NIED is based on her allegation that she "suffered emotional distress including anxiety, fear for her physical safety, apprehension resulting from the trespass incident [referring to alleged trespass by the HOA's vendors], emotional trauma related to repeated loss of habitability, and distress caused by the HOA's failure to take responsibility or remediate the conditions." (Complaint, ¶ 123.) Salmassian's claim for negligence, based on the same alleged failure to prevent water intrusion, also seeks emotional distress damages, albeit in less detail than her NIED claim. (See Complaint, ¶ 72.) Salmassian's separate NIED allegations do not rise to the level of emotional distress with which a "reasonable, normally constituted person would be unable to cope." (Wong

v. Tai Jing, *supra*, 189 Cal.App.4th at 1378.) Salmassian's NIED allegations are duplicative of her negligence claims.

e.

Punitive

Damages

Salmassian's

claim for punitive damages is based on the above-considered claims. Since the Court finds that the complaint does not state a claim under any of the claimed causes of action, the complaint's claim for punitive damages is likewise unsupported.

f.

Leave

to Amend

This is

the first challenge to the pleadings in this case. Salmassian requests leave to amend. It is reasonably likely that Salmassian will be able to add the required detail to state claims for nuisance, IIED, financial elder abuse, and NIED.

Leave to amend is appropriate.

Conclusion

The HOA's

Motion for Judgment on the Pleadings is GRANTED with leave to amend.